

IN THE
Supreme Court of the United States

SAMANTHA ESTEFANIA FRANCISCO CASTRO,

Applicant,

v.

JOSE LEONARDO BRITO GUEVARA,

Respondent.

ON APPLICATION TO THE HONORABLE SAMUEL A. ALITO, JR.,
ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE UNITED STATES
AND CIRCUIT JUSTICE FOR THE FIFTH CIRCUIT

EMERGENCY APPLICATION FOR STAY

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PARTIES TO THE PROCEEDING AND RELATED PROCEEDINGS

Applicant (Defendant-Appellee below) is Samantha Estefania Francisco Castro. Respondent (Plaintiff-Appellant below) is Jose Leonardo Brito Guevara.

The proceedings below were:

1. *Jose Leonardo Brito Guevara v. Samantha Estefania Francisco Castro*, No. 24-10520 (5th Cir.). On September 5, 2025, the panel majority rendered judgment in favor of Brito. App.18a. On September 26, 2025, the Fifth Circuit entered an order denying Castro's motion to stay the mandate pending her forthcoming petition for a writ of certiorari.
2. *Jose Leonardo Brito Guevara, and Beatriz Zulay Guevara Flores v. Samantha Estefania Francisco Castro*, No. 3:23-cv-1726 (N.D. Tex.). On May 8, 2024, the district court denied Brito's petition.

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TO THE HONORABLE SAMUEL A. ALITO, JR., ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE UNITED STATES AND CIRCUIT JUSTICE FOR THE FIFTH CIRCUIT:

Pursuant to 28 U.S.C. §§ 2101(f) and 1651 and Supreme Court Rule 23, Applicant Samantha Estefania Francisco Castro applies to stay issuance of the mandate of the United States Court of Appeals for the Fifth Circuit pending a decision on Castro's forthcoming petition for a writ of certiorari. Castro further requests that the Court enter an immediate administrative stay of the Fifth Circuit's mandate pending a decision on this application.

INTRODUCTION

This application concerns whether, pending a forthcoming petition for certiorari, a seven-year-old girl residing in Dallas, Texas with her mother should be sent back to Venezuela, a country she has not entered since she was three years old and where *neither* of her parents currently live.

A.F. was born in Venezuela in 2018 to Brito (her father) and Castro (her mother). When A.F. was three years old, Brito moved to Spain, leaving A.F. and Castro behind in Venezuela. A few months later, in November 2021, Castro and A.F. left Venezuela and came to the United States, where they both immediately sought asylum. Their asylum applications remain pending to this day, and they have both been granted Temporary Protected Status and employment authorization.

After arriving in the United States, Castro and A.F. settled in the Dallas area, where they have now lived for almost four years. Since August 2023, A.F. has attended the George Herbert Walker Bush Elementary School in Addison, Texas,

where she was nominated for—and now participates in—the school’s Gifted and Talented Program. Her entire life as she knows and remembers it is in Texas.

A.F.’s father, meanwhile, continues to live in Spain. Nonetheless, in April 2023, Brito (along with Brito’s mother) petitioned a federal court under the Hague Convention on the Civil Aspects of International Child Abduction (the “Hague Convention”) to obtain the immediate return of A.F. to Venezuela. But because Brito filed his petition more than a year after Castro and A.F. left Venezuela, the Hague Convention permitted the district court to deny the petition upon Castro showing “that the child is now settled in its new environment” (the “well-settled defense”).

That is precisely what the district court found here. After a two-day bench trial, the district court weighed all the evidence and found that, under the Fifth Circuit’s seven-factor test, A.F. is in fact “well settled in her new environment in Texas” and “it is no longer in the best interests of A.F. to return to Venezuela, where she has minimal connections and no memories of living there.” App. 72a.

A divided panel of the Fifth Circuit, however, reversed. In a 2-1 decision, the Fifth Circuit first held that the district court’s finding that A.F. is “well settled” must be reviewed *de novo*, not for clear error—expressly splitting with multiple other circuits that have held that clear-error review applies to such determinations. Applying *de novo* review, the Fifth Circuit then proceeded to re-assess the facts, re-weigh their significance, and re-apply those facts under its seven-factor balancing test, ultimately concluding “that A.F. is not well-settled in her new environment.”

App.18a. The Fifth Circuit remanded “with instructions that the district court enter an order directing A.F.’s return to Venezuela.” *Id.*

The Fifth Circuit’s decision warrants review by this Court. The majority openly acknowledged that there is now a clear circuit split on the appropriate appellate standard of review for determinations that a child is “well settled” under the Hague Convention. Further, the Fifth Circuit majority’s holding cannot be reconciled with this Court’s recent precedents on the appropriate standard of review for mixed questions of law and fact. Those precedents include *Monasky v. Taglieri*, 589 U.S. 68 (2020), in which this Court held that a district court’s analogous determination of a child’s “habitual residence” under the Hague Convention is an inherently factual issue that must be reviewed for clear error only. This Court’s review is therefore needed to resolve the important and recurrent issue of the standard of review for “well settled” determinations, and Castro intends to petition for certiorari.

Castro moved in the Fifth Circuit for a stay of the mandate pending her forthcoming petition for certiorari. On September 26, 2025, however, the Fifth Circuit denied Castro’s stay motion and now intends to issue the mandate on Friday, October 3, 2025. Castro therefore seeks emergency relief from this Court to stay the Fifth Circuit’s mandate pending her forthcoming petition for certiorari. Without a stay, A.F. will be involuntarily sent to Venezuela—a country from which she and her mother have sought asylum.

This Court should grant that relief. All the traditional factors supporting a stay are present here. The Fifth Circuit majority both split with its sister circuits and also

contravened applicable precedent from this Court on an important issue of federal and international law that calls for uniformity. So there is certainly a reasonable probability that the Court will grant certiorari and reverse the Fifth Circuit.

And absent a stay, A.F. and Castro will be substantially and irreparably harmed. A.F.'s entire life will be upended. She will be abruptly removed from her school—where she has been developing in the Gifted and Talented program—her church, her community, her friends, and her family. She will be sent to a country where neither of her parents has resided since 2021 and which she has not been to since she was three years old and does not remember. The instability and upheaval of that move will cause irreparable harm to A.F. And without a stay, Castro and A.F. will almost certainly be forced to abandon their current asylum applications. By contrast, Brito—who voluntarily left A.F. in 2021 and has been living in Spain apart from A.F. ever since—can hardly claim harm from a stay.

The point of the well-settled defense is to *avoid* sending a child to a foreign country when it is no longer in the child's best interests to do so—especially when the child, like A.F. here, has no memory of the former country and when no one with custody rights even lives there. That is why the district court, after careful fact-finding, denied Brito's petition—a decision that, per this Court's precedents, should have been reviewed under a deferential clear-error standard.

The Court should therefore stay the Fifth Circuit's mandate pending Castro's petition for certiorari. And to give itself time to consider this emergency application, the Court should also enter an administrative stay.

OPINIONS BELOW

The September 5, 2025 decision of the Fifth Circuit is reproduced at App.1a. It is set to be, but has not yet been, published.

The May 8, 2024 findings of fact and conclusions of law of the United States District Court for the Northern District of Texas is reproduced at App.51a.

JURISDICTION

This Court has jurisdiction to resolve this application under 28 U.S.C. §§ 1331 and 2101(f).

STATEMENT

A. The Hague Convention and the “Well-Settled” Defense

“Under the Hague Convention ..., if a court finds that a child was wrongfully removed from the child’s country of habitual residence, the court ordinarily must order the child’s return.” *Golan v. Saada*, 596 U.S. 666, 669 (2022). “There are, however, exceptions to that rule.” *Id.* Most relevant here, when a Hague Convention proceeding is commenced more than a year after the child’s removal, the child need not be returned if “it is demonstrated that the child is now settled in its new environment.” *Lozano v. Alvarez*, 572 U.S. 1, 5 (2014) (quoting Article 12 of the Convention). This defense—called the “well-settled defense”—“recognize[s] that at some point a child may become so settled in a new environment that return is no longer in the child’s best interests.” *Hernandez v. Pena*, 820 F.3d 782, 787 (5th Cir. 2016); *see also Lozano*, 572 U.S. at 16 (explaining that “the child’s interest in settlement” can “overcome the return remedy”).

As this Court has recognized, determining “whether the child is settled” is a “factual determination.” *Lozano*, 572 U.S. at 17. And because the well-settled defense requires “an individualized, fact-specific inquiry,” *Hernandez*, 820 F.3d at 789, courts consider a multitude of factors to determine whether a child has become sufficiently settled, *id.* at 787-88 (identifying seven factors for consideration); *see also Figueredo v. Rojas*, 99 F.4th 1344, 1351 (11th Cir. 2024) (same and citing cases).

B. Factual Background

A.F. was born on May 3, 2018, in Venezuela to Castro and Brito. App.54a. Castro and Brito were not and never have been married. *Id.* In August 2021, when A.F. was three years old, Brito left Venezuela for Spain, leaving behind both A.F. and Castro. App.55a. Brito has never returned to Venezuela and continues to live in Spain. App.54-55a.

In November 2021, Castro and A.F. left Venezuela and came to the United States. App.55a. Upon arrival, they immediately and voluntarily presented themselves to the U.S. Border Patrol in San Luis, Arizona, and sought asylum. App.54-55a. Both of their asylum applications remain pending, and they are still awaiting their asylum interviews with USCIS. *Id.* In the interim, however, they both have been granted Temporary Protected Status under the INA, and the USCIS has issued employment authorization documents to them both. App.57a; App.20a. n.1.

Since arriving in the United States, Castro and A.F. have lived in the Dallas area with Castro’s now-husband, Otton Rodriguez, who also has been issued Temporary Protected Status and has an asylum application pending. App.56a-57a. As the district court found, the three have “consistently had stable housing,” moving

just once—in October 2022—from one location within the Dallas area to another. App.56a, App.59a.

Castro has also “been gainfully employed since arriving in the United States.” App.71a. As the district court put it, she “is financially secure and amply provides for A.F., with the help of her partner, Mr. Otton Rodriguez,” who “cares deeply for A.F. and acts as a father-figure in her life.” App.59a.

A.F. started kindergarten in August 2023 at the George Herbert Walker Bush Elementary School in Addison, Texas, where she was nominated for the school’s Gifted and Talented Program. App.57a, App.71a.¹ She has relatives and friends in the area with whom she interacts regularly—she has playdates with classmates, attends birthday parties, plays at the local playgrounds, and spends significant time with her aunt and cousin, who also attends George Herbert Walker Bush. App.71a. A.F. also has a primary care physician in Dallas whom she sees regularly, and she regularly attends church in Dallas with her mother and Rodriguez. *Id.*

C. Procedural History

1. On April 19, 2023, Brito (along with his mother) filed a petition in the United States District Court for the Eastern District of Texas, seeking A.F.’s return to Venezuela under the Hague Convention. The action was subsequently transferred to the Northern District of Texas, and, after a two-day bench trial, the district court denied the petition. App.51a, App.72a.

¹ A.F. is now in second grade and is currently enrolled in the school’s Gifted and Talented Program.

The district court explained that, because Brito filed the petition more than a year after A.F. had left Venezuela, A.F. should not be returned to Venezuela if the “preponderance of the evidence [shows] that A.F. is now well settled in her new environment in Texas.” App.70a. And, “[a]fter thorough consideration” of the evidence presented at trial and applying the Fifth Circuit’s seven-factor test, the district court concluded that “the evidence demonstrates that A.F. has formed significant connections to her new environment in Texas,” certainly “stronger than her connections to Venezuela.” App.59a., App.70a.

In particular, the district court found that:

- “A.F. has lived in the Dallas area for over two years with stable housing throughout the entire duration as she was subject to just one move since her arrival in the United States”;
- “A.F. has consistently attended daycare and/or school,” that she was “nominat[ed] for the Gifted and Talented Program at [her] school,” and that she has demonstrated “continuing academic improvement”;
- “A.F. has ... relatives and friends in the area whom she interacts with routinely,” including her cousin (with whom she attends school) and her aunt (whose house she goes to every day after school);
- “overwhelming” evidence showed A.F.’s “participation in extracurricular or community activities,” including that she “regularly attends church in Dallas with [Castro] and Mr. Rodriguez”;
- A.F. “has a primary care physician whom she sees regularly”; and

- Castro “has been gainfully employed since arriving in the United States and provides for A.F.,” crediting Castro’s testimony that “if she was to ever split from Mr. Rodriguez, she and A.F. would move to a cheaper apartment,” thereby rendering “her inability to split payments [with Rodriguez] ... a non-issue.”

App.71a-App.72a.

The district court acknowledged that two factors cut against applying the well-settled defense but were not “dispositive.” App.70a. The first was A.F.’s young age—she was five at the time. *Id.* The second was Castro’s and A.F.’s immigration status, as both “do not have Lawful Permanent Residence status in the United States” and “are currently awaiting their asylum interview with USCIS.” *Id.* Still, weighing all the evidence, the district court determined that those two factors did not outweigh “the other five factors [that] overwhelmingly support a finding of well settled,” noting that Castro and A.F. “are in the midst of the proper procedures to achieve lawful status in the United States” and that they both “have received employment authorization documentations from the USCIS.” *Id.*

The district court therefore found that “it is no longer in the best interests of A.F. to return to Venezuela, where she has minimal connections and no memories of living there.” App.72a. Accordingly, the district court concluded that “it is in A.F.’s best interest to deny Petitioners’ Hague Petition in support of the Convention’s goal of not only protecting children from wrongful removal, but also protecting children

from a second removal from a new environment to which they have become connected and settled.” *Id.*

2. Brito appealed to the Fifth Circuit. App.4a. In a 2-1 decision, a divided panel of the Fifth Circuit reversed.² The panel first addressed the standard of review for a district court’s determination that a child is “well settled.” App.7a-App.12a. Asserting that the “well-settled inquiry is primarily legal,” the panel held that *de novo*, not clear error, review applies. App.8a, App.11a-App.12a. The panel recognized that this Court, in *Monasky v. Taglieri*, 589 U.S. 68 (2020), held that the standard of review for determining the analogous issue of a child’s “habitual residence” under the Hague Convention is clear error, not *de novo*. App.10a; *see also Monasky*, 589 U.S. at 78. Despite the plain similarities between the “habitual residence” and “well settled” inquiries, *see, e.g., Figueredo v. Rojas*, 99 F.4th 1344, 1350 (11th Cir. 2024), the panel nonetheless brushed aside *Monasky* as “say[ing] nothing about whether the well-settled defense is primarily legal or factual,” App.10a. The panel added that, in its view, prior Fifth Circuit precedent had already held that *de novo* review applies here and that, “[w]ithout clearer direction from the Supreme Court, [the panel] cannot override the *de novo* standard of review set by the [prior] panel.” *Id.*

The panel also expressly acknowledged that its holding splits with those of the First and Eleventh Circuits, both of which have held post-*Monasky* that clear-error

² The Fifth Circuit issued its initial opinion—also a 2-1 decision—on June 2, 2025. *See Brito v. Castro*, 139 F.4th 422 (5th Cir. 2025). After Castro petitioned for rehearing, the Fifth Circuit panel withdrew its June 2, 2025 opinion and issued a substitute opinion on September 5, 2025. App.1a-App.2a.

review applies to a district court’s determination of whether a child is well settled under the Hague Convention. *See* App.11a. n.40 (citing *Ferreira da Costa v. Albefaro de Lima*, 94 F.4th 174, 181 (1st Cir. 2024) and *Figueredo*, 99 F.4th at 1350). The panel stated, however, that its approach aligns “with at least three of [its] sister circuits,” citing a post-*Monasky* summary order from the Second Circuit and pre-*Monasky* decisions from the Second, Fourth, and Ninth Circuits. App.11a. & n.40.

Applying *de novo* review, the panel then re-assessed the facts and concluded that “[b]alancing the relevant factors *de novo*, we are not persuaded that A.F. has formed such deep or enduring ties to her new environment that returning to her home in Venezuela would contravene her best interests.” App.12a. The panel therefore reversed and remanded “with instructions that the district court enter an order directing A.F.’s return to Venezuela.” App.18a.

Judge Douglas dissented. Judge Douglas first reasoned that *Monasky* plainly applies here, and that that decision, as well as this Court’s even more recent decision in *Bufkin v. Collins*, 604 U.S. 369 (2025), “dictates that clear-error review” applies to the “well settled” analysis. App.29a; *see also* App.23a-App.29a. As Judge Douglas put it, “[c]onsidering a child’s best interests through record evidence ‘is “about as factual sounding” as any question gets.” App.28a (quoting *Bufkin*, 604 U.S. at 382). Judge Douglas further reasoned that, “even if the majority opinion is correct in weighing the factors *de novo*,” she “respectfully disagree[d] with its conclusion,” observing that the majority “blends [factors] together without providing proper deference to the district court.” App.29a.

3. On September 17, 2025, Castro moved in the Fifth Circuit for a stay of the mandate pending her forthcoming petition for certiorari. *See* Mot. for Stay, Case No. 24-10520 (5th Cir.), Doc. No. 119. Castro explained that her petition will present the question of whether a district court’s determination of whether a child is “well settled” under the Hague Convention is reviewed *de novo* or for clear error—a substantial question of federal law on which a clear circuit split exists. *Id.* at 3-5. Castro further explained that removing A.F. from the United States will cause substantial and irreparable harm, including by forcing A.F. and Castro to presumptively abandon their asylum applications, and would defeat the whole purpose of the “well settled” defense—that it is simply not in a child’s best interests to be removed from an environment in which the child has become well settled. *Id.* at 5-6. Brito opposed the motion but did not file any response.

On September 26, 2025, Judge Willett denied Castro’s motion. App.49a. Judge Willett provided no reason to doubt that Castro’s forthcoming petition for certiorari “will raise a substantial question worthy of Supreme Court review.” *Id.* Instead, Judge Willett concluded that this Court’s decision in *Chafin v. Chafin*, 568 U.S. 165 (2013), foreclosed Castro’s “good cause” argument. App.50a. As for Castro’s argument that sending A.F. back to Venezuela is not in her best interests, Judge Willett dismissed that argument as “essentially relitigating the merits.” *Id.*

Castro has now exhausted every possible avenue for relief in the Fifth Circuit, and, absent intervention from this Court, the Fifth Circuit’s mandate is set to issue on Friday, October 3, 2025.

REASONS FOR GRANTING THE STAY

This Court should stay the issuance of the Fifth Circuit’s mandate pending Castro’s filing of a petition for a writ of certiorari. Such a stay is appropriate when the applicant shows “(1) a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari; (2) a fair prospect that a majority of the Court will vote to reverse the judgment below; and (3) a likelihood that irreparable harm will result from the denial of a stay.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010). Those criteria are satisfied here.

I. There Is a Reasonable Probability That the Court Will Grant Certiorari

In denying Castro’s motion for a stay, Judge Willett did not dispute that Castro’s forthcoming petition for certiorari “will raise a substantial question worthy of Supreme Court review.” App.49a. The panel expressly acknowledged that it was splitting with multiple other circuits on the question of whether to apply *de novo* or clear-error review to a district court’s “well settled” determination under the Hague Convention, noting the need for “clearer direction from the Supreme Court.” App.10a. Such a circuit split on an important issue of federal law requires this Court’s resolution. What’s more, the panel decision below cannot be squared with this Court’s recent precedent regarding the standard of review for mixed questions of fact and law. That includes, most notably, this Court’s decision in *Monasky*, which addressed an issue under the Hague Convention (the “habitual residence” requirement) that is virtually indistinguishable from the one here (the “well settled” defense). And the question of whether to review “well settled” determinations *de novo* or for clear error

is a recurrent issue with profound consequences for children subject to Hague Convention litigation. There is therefore a reasonable probability that this Court will grant certiorari here.

A. The Fifth Circuit’s Decision Conflicts With Other Circuit Precedents

In holding that *de novo*, not clear error, review applies here, the panel expressly noted that both the First and Eleventh Circuits have held to the contrary. App.11a n.40; *see also Figueredo v. Rojas*, 99 F.4th 1344, 1350 (11th Cir. 2024); *Ferreira da Costa v. Albefaro de Lima*, 94 F.4th 174, 181 (1st Cir. 2024); *da Silva v. de Aredes*, 953 F.3d 67, 72 (1st Cir. 2020). For the First and Eleventh Circuits, this question is controlled by this Court’s decision in *Monasky*, which held that clear-error review applies to a determination of a child’s “habitual residence.” *See, e.g., Figueredo*, 99 F.4th at 1350. As the Eleventh Circuit reasoned: “a child’s habitual residence” and “whether a child is settled” are “analogous concept[s]” and determining the applicability of those concepts to a specific case involves “classic factfinding work.” *Id.*

The panel’s decision to deviate from those holdings of the First and Eleventh Circuits thus creates a clear, post-*Monasky* circuit split. And if the aperture is widened to include *pre-Monasky* decisions—as the panel below insists should be the case—then the split becomes even deeper. Pre-*Monasky*, the Second, Fourth, and Ninth Circuits all held, like the Fifth Circuit panel below, that *de novo* review applies to a district court’s determination whether a child is “well settled.” *See Alcala v.*

Hernandez, 826 F.3d 161, 171 n.7 (4th Cir. 2016); *In re B. Del C.S.B.*, 559 F.3d 999, 1008 (9th Cir. 2009); *Broca v. Giron*, 530 F. App'x 46, 48 (2d Cir. 2013).

Those decisions are still on the books. To be sure, it is possible that those circuits will change course in light of *Monasky*. In *B. Del C.S.B.*, for instance, the Fourth Circuit concluded that *de novo* review applies because it had previously held that *de novo* review applies in the “analogous context” of determining “habitual residence.” 559 F.3d at 1008. Post-*Monasky*, the Fourth Circuit’s prior “habitual residence” precedents are no longer good law. Nonetheless, those circuits’ pre-*Monasky* cases on the “well settled” defense have not yet been abrogated, and at least the Second Circuit has relied upon its pre-*Monasky* precedent in a non-precedential summary order even after *Monasky*. See *Lomanto v. Agbelusi*, 2024 WL 3342415, at *2 (2d Cir. July 9, 2024) (applying *de novo* review).

In any event, it cannot be disputed that a clear circuit split currently exists on the relevant standard of review of a district court’s determination of whether a child is “well settled” under the Hague Convention. There is therefore reasonable probability that the Court will grant certiorari to resolve that split and ensure uniform standards in Hague Convention cases across the country.

B. The Fifth Circuit’s Decision Contravenes This Court’s Holding in *Monasky*

There is also a reasonable probability of the Court granting certiorari here because, in addition to conflicting with other circuits, the panel’s decision also cannot be reconciled with this Court’s decision in *Monasky*. See S. Ct. R. 10(c).

In *Monasky*, the Court addressed the appropriate standard of review of a district court’s determination of a child’s “habitual residence” under the Hague Convention. 589 U.S. at 83. That issue, the Court explained, is a “mixed question” of law and fact, “albeit barely so.” *Id.* at 84. Because “the appropriate standard of appellate review for a mixed question ‘depends . . . on whether answering it entails primarily legal or factual work,’” the question became whether determining habitual residence is primarily a legal or a factual task for a court. *Id.* at 83–84 (ellipses in original) (quoting *U.S. Bank, N.A. v. Village at Lakeridge, LLC*, 583 U.S. 387, 388 (2018)).

The Court concluded that it is a factual task. The Court explained that, after “identif[ying] the governing totality-of-the-circumstances standard,” a court ultimately must “answer a factual question: Was the child at home in the particular country at issue?” *Id.* And because that “presents a task for factfinding courts,” it must “be judged on appeal by a clear-error review standard deferential to the factfinding court.” *Id.*

Monasky’s reasoning applies with full force to a court’s determination of whether a child is well-settled. Like the habitual residence inquiry, the well-settled

inquiry is a “totality-of-the-circumstances standard”³ that ultimately requires a court to “answer a factual question”: Is the child well settled in the new country? *Id.* Determining whether a child is “well settled” is therefore no less of a factual inquiry than determining a child’s habitual residence, and thus, under *Monasky*, clear-error review is required.

The panel below made no serious attempt to distinguish *Monasky*, simply stating that the holding there “says nothing about whether the well-settled defense is primarily legal or factual.” App.10a. But *Monasky* does in fact say quite a lot about that question—indeed, it all but decided it. As Judge Douglas observed in dissent, “a comparison” of the habitual-residence inquiry at issue in *Monasky* and the well-settled defense at issue here “shows just how similar the inquiries’ factual natures are.” App.24a.

For instance, just as the term “habitual” is undefined and “suggests a fact-sensitive inquiry,” *Monasky*, 589 U.S. at 76-77, the term “settled” likewise is undefined and “certainly suggests a fact-intensive inquiry.” App.24a. And just as the term “habitual” requires the consideration of multiple factors, including the child’s age, immigration status, academic activities, social engagements, and connections with people and places in the new country, the term “settled” also requires a multiple-factor analysis, including many of the same factors that are considered in the

³ The Fifth Circuit panel suggested, in a footnote, that its seven-factor balancing test is not the same as a “totality-of-the-circumstances test.” App.11a n.40. That is a distinction without a difference. As the Fifth Circuit has previously explained, “proper application” of its “multifactor test” “requires an individualized, fact-specific inquiry ... in every case.” *Hernandez*, 820 F.3d at 788-89.

“habitual residence” analysis. *See id.*; *see also Monasky*, 589 U.S. at 78 (explaining that “[n]o single fact ... is dispositive across all cases” in determining habitual residence).

There is simply no principled basis to review a district court’s “habitual-residence” determination for clear error but its “well settled” determination *de novo*. The panel’s decision thus conflicts with this Court’s decision in *Monasky*, which only adds to the probability of a cert-grant here. *See* Sup. Ct. R. 10(c).

C. This Case Presents an Important, Recurrent Issue Warranting Supreme Court Review

The appropriate standard of appellate review in Hague Convention cases is “an important question of federal and international law,” and certiorari is “warranted to resolve a division in Courts of Appeals” on this issue. *Monasky*, 589 U.S. at 76. Uniformity is crucial in Hague Convention cases. In its legislation implementing the Hague Convention, Congress, in fact, expressly recognized “the need for *uniform* international interpretation of the Convention.” 22 U.S.C. § 9001(b)(3)(B) (emphasis added). That explicit goal of the Hague Convention is undermined when the relevant appellate standard of review differs by circuit. Resolving this circuit split and thereby ensuring uniform enforcement of the Hague Convention is therefore of critical importance.

Clarifying the correct standard of appellate review—and, specifically, confirming that clear-error review is applied where appropriate—is also of “particular virtue in Hague Convention cases.” *Monasky*, 589 U.S. at 84. “As a deferential standard of review, clear-error review speeds up appeals and thus serves the

Convention’s premium on expedition.” *Id.* And ensuring that fundamentally factual determinations are made by the proper institutional actor (*i.e.*, the trial court) has systemic value. As Judge Easterbrook once put it, “[t]here is little to gain, and much to lose, in holding a rerun before another set of judges.” *Sotelo v. Indiana State Prison*, 850 F.2d 1244, 1254 (7th Cir. 1988) (Easterbrook, J., concurring).

II. There Is a Reasonable Probability of Reversal

If certiorari is granted, reversal should follow. As explained above, the panel’s decision simply cannot be squared with *Monasky*. *See supra* I.B. The panel majority provided no basis to distinguish *Monasky*, nor is there any basis to do so. That is why, until the Fifth Circuit majority here, every circuit to have considered, in a published opinion, the appellate standard of review for “well settled” determinations post-*Monasky* has held that *Monasky* requires clear-error review. *See, e.g., Figueredo*, 99 F.4th at 1350; *Ferreira da Costa*, 94 F.4th at 181.

The panel’s decision flies in the face of not only *Monasky* but also other recent decisions of this Court regarding the appropriate standard of review for mixed questions of fact and law. For instance, in *U.S. Bank N.A. v. Village at Lakeridge, LLC*, the Court explained that the appropriate standard of review depends on “whether answering it entails primarily legal or factual work.” 583 U.S. at 396. Some mixed questions “require courts to expound on the law, particularly by amplifying or elaborating on a broad legal standard.” *Id.* For those questions, *de novo* review is appropriate. *Id.* By contrast, “other mixed questions immerse courts in case-specific factual issues.” When that’s the case, “appellate courts should usually review a decision with deference.” *Id.*

In *U.S. Bank*, the mixed question was whether, “[g]iven all the basic facts found,” a certain individual was a “non-statutory insider” for Bankruptcy Code purposes. *Id.* at 397. And the Court unanimously held that “[t]hat is about as factual sounding as any mixed question gets.” *Id.* “The court takes a raft of case-specific historical facts, considers them as a whole, balances them one against another—all to make a determination” whether a certain legal standard has been met. *Id.* As the Court put it, “[j]ust to describe that inquiry is to indicate where it (primarily) belongs: in the court that has presided over the presentation of evidence, that has heard all the witnesses, and that has both the closest and the deepest understanding of the record.” *Id.* at 397-98. That court’s conclusion thus must be “subject only to review for clear error.” *Id.* at 399.

The Court reaffirmed those principles yet again this past term in *Bufkin v. Collins*, 604 U.S. 369 (2025). There, the Court considered the appellate standard of review for the Department of Veterans Affairs’ determination whether to apply the so-called “benefit-of-the-doubt rule” when “evaluating a veteran’s claim for service-related disability benefits.” *Id.* at 372. That determination, too, is a mixed question of fact and law—it requires the VA to “marshal[] and weigh[] evidence,” then “compare[] the relative strength and persuasiveness of the evidence on each side,” and then ultimately “determine whether the evidence satisfies a legal standard.” *Id.* at 381-82. The Court held that that inquiry, like the inquiry in *U.S. Bank*, “is ‘about as factual sounding’ as any question gets,” because it “necessarily immerses the [VA]

‘in case-specific factual issues.’” *Id.* at 383 (quoting *U.S. Bank*, 583 U.S. at 396 & 397). And so “its determinations should be reviewed with deference.” *Id.*

The “well settled” inquiry is no different from the inquiries at issue in *Monasky*, *U.S. Bank*, and *Bufkin*. It requires the court to ask: “[g]iven all the basic facts found,” is the child well settled in the new country? *U.S. Bank*, 583 U.S. at 397. Such a question, too, “is about as factual sounding as any mixed question gets.” *Id.* Accordingly, the answer reached by the trial court, which “has presided over the presentation of evidence, that has heard all the witnesses, and that has both the closest and the deepest understanding of the record,” must be reviewed deferentially. *Id.* at 398. Indeed, when reviewing that determination, the appellate court is doing “[p]recious little” legal work. *Id.* at 398. It does not “need to further develop ‘norms and criteria,’ or to devise a supplemental multi-part test, in order to apply the familiar term.” *Id.* In other words, “appellate review” of the “well settled” determination “will not much clarify legal principles or provide guidance to other courts resolving other disputes,” which “means the issue is not of the kind that appellate courts should take over.” *Id.*

In short, the contrary approach adopted by the Fifth Circuit majority below cannot be squared with this Court’s holdings in *Monasky*, *U.S. Bank*, and *Bufkin*. There is thus a fair probability that, if the Court granted certiorari, it would reverse.

III. Denial of a Stay Will Nearly Certainly Cause Irreparable Harm

Absent a stay, both A.F. and Castro will be substantially and irreparably harmed in multiple ways.

First, uprooting A.F. from Texas and sending her back to Venezuela—where ***neither of her parents lives*** and where she has “no memories of living,” App.72a—will profoundly and irreparably harm her. A.F. is a seven-year-old child. Her entire life is now in Texas, where she has lived and been growing up for almost four years. App.70a.-App.71a. Since August 2023, she has attended the George Herbert Walker Bush, where she was nominated for—and has since been accepted to—the school’s Gifted and Talented program. App.71a. She also, along with her mother, regularly attends church in Dallas, and, as the district court found, she has become deeply enmeshed in her community. *Id.* And she spends significant time with her family and friends in the area. *Id.*

Abruptly removing a developing seven-year-old child from her school, her church, her community, her friends, and her family is incredibly destabilizing and harmful, and will almost certainly cause devastating and irreversible damage. *Cf. Washington v. Seattle Sch. Dist. No. 1*, 458 U.S. 457, 472 (1982) (“Education has come to be ‘a principal instrument in awakening the child to cultural values, in preparing [her] for later professional training, and in helping [her] to adjust normally to [her] environment.’” (quoting *Brown v. Bd. of Educ.*, 347 U.S. 483, 493 (1954))).

This is not what the Hague Convention contemplates. The Hague Convention has a “well settled” defense precisely because it is generally ***detrimental*** to the child’s best interests to remove a child from a place where she has become well settled. That is the case here. Separating A.F. from her life in Texas and sending her back to

Venezuela, a place she has not been since the age of three and where neither of her parents lives, will cause instability beyond repair.

Moreover, carrying out the Fifth Circuit’s order and sending A.F. to Venezuela would result in the presumptive abandonment of her asylum application. The regulations are clear: absent advance parole, an asylum applicant is “presumed to have abandoned his or her application” by leaving the country. 8 C.F.R. § 1208.8(a). And even if A.F. (1) could timely apply for advance parole and (2) has that application granted, she is *still* presumed to have abandoned her application because she would be returning to Venezuela, “the country of claimed persecution[.]” *Id.* § 1208.8(b). Removing A.F. from the United States and sending her back to Venezuela—the country of her persecution—would thus very likely end her asylum application before it has even been adjudicated.⁴ Such irreparable harms support a stay. *See, e.g., Singh v. United States Dep’t of Homeland Security*, 2020 WL 9396227, at *4 (D. Ariz. Feb. 19, 2020) (“Because removal would deprive Petitioner of the relief he seeks – asylum in the United States – he has shown that it is probable that he would suffer irreparable harm absent a stay.”). And, even if she could pursue her asylum application from Venezuela, it is unclear if she could even return to the United States, compounding the irreparable harm. *Cf. W.M.M. v. Trump*, --- F.4th ----, 2025 WL 2508869, at *21-22 (5th Cir. Sept. 2, 2025) (holding that, where “the questions remain

⁴ Although not part of the record on appeal, Castro’s asylum application is based on political opinion. Applicant faces political persecution in Venezuela because of her participation in protests against the current Maduro regime. She fled Venezuela to protect her life and that of A.F.

on whether [Petitioners'] return could ever be effected" after deportation, the petitioners would suffer irreparable harm).

Not only would A.F.'s application for asylum be presumptively abandoned, so, too, would Castro's. Because A.F. has no custodial parent in Venezuela, Castro would have no choice but to accompany A.F. there. So she too would be forced to return to a country from which she is seeking political asylum before the merits of her asylum application are ever considered. And she would be a political dissident forced to return to a country whose regime has just declared a "state of emergency" due to escalating tensions with the United States.⁵ Maintaining the status quo pending Castro's forthcoming petition for certiorari is therefore crucial to prevent such irreparable harm from occurring.

In refusing to recognize "good cause" for a stay here, the Fifth Circuit largely relied on *Chafin v. Chafin*, 568 U.S. 165 (2013). But that reliance was misplaced. In *Chafin*, this Court held that, as a matter of Article III jurisdiction, an appeal of a Hague Convention return order is not moot even though the child has already been returned to the prior country under that order. *Id.* at 180. Thus, a father still had a "live" appeal even though the dual-citizen child had already been returned to her mother in Scotland. *Id.*; *see also id.* at 170-71. But *Chafin* emphatically did *not* hold that a stay is categorically unavailable in a Hague Convention appeal or that

⁵ CBS News, *Venezuela's Maduro says he's ready to declare state of emergency after U.S. military strikes on alleged drug boats* (Sept. 30, 2025), <https://www.cbsnews.com/news/venezuela-maduro-state-emergency-us-military-strikes-alleged-drug-boats/>.

returning a child pending appeal can never cause irreparable harm. To the contrary, the Court recognized “the concern that shuttling children back and forth between parents and across international borders may be detrimental to those children.” *Id.* at 178. And the Court made clear that one “familiar” way of addressing that concern and “protect[ing] the well-being of the affected children” is by “**granting stays where appropriate**” and “ensuring that each case will receive **the individualized treatment** necessary for appropriate consideration of the child’s best interests.” *Id.* at 178-79 (emphasis added). On the individualized facts here, a stay is in A.F.’s best interests and more than appropriate.

The Fifth Circuit’s other basis for denying a stay should likewise be rejected. According to the Fifth Circuit, any irreparable harm “assumes the district court correctly found the child ‘well-settled in Texas’ and that such a finding would withstand clear-error review—essentially relitigating the merits.” App.50a. But the main reason for a stay pending appeal (or pending a petition for certiorari) is “to prevent irreparable injury to the parties or to the public **pending review**” of the lower court’s decision. *Nken v. Holder*, 556 U.S. 418, 432 (2009) (quotation omitted and emphasis added). In other words, Castro seeks a stay here to prevent the irreparable harm—removing a child well-settled in a new environment—that is the very subject of this appeal. To merely assume that Castro would lose on remand puts the cart before the horse.

At bottom, carrying out the Fifth Circuit mandate will uproot A.F. from the familial, peer, and religious communities she has built in the United States. It will

stunt her educational development, ripping her from the Gifted and Talented Program in the middle of a school year. And it will lead to presumptive abandonment of A.F.'s and Castro's applications for asylum. A stay is warranted to prevent such irreparable harm.

IV. The Equities Favor a Stay

“In close cases the Circuit Justice or the Court will balance the equities and weigh the relative harms to the applicant and to the respondent.” *Hollingsworth*, 558 U.S. at 190. Given the likelihood of review in this case, coupled with the clear, irreparable harm to A.F. and Castro if A.F. is sent back to Venezuela, this should not be a close case. But should the Court weigh the equities, they too counsel in favor of a stay.

As explained above, denying a stay here will substantially and irreparably harm both A.F. and Castro. Absent a stay, A.F. will be sent to a country (Venezuela) where ***neither*** of her parents currently reside. And Castro will be presented with the Hobson's choice of either being separated from her daughter or abandoning her pending asylum application. That is an inequitable consequence.

By contrast, a stay will not “substantially injure” Brito. *Chafin*, 568 U.S. at 179. Brito does not live in Venezuela, the location to which A.F. will be sent. Rather, he lives across the ocean in Spain, where he voluntarily moved in 2021, leaving behind A.F. and Castro. This is therefore not a situation where granting a stay will keep a parent separated from a child for longer. Under these circumstances, allowing A.F. to remain in Texas while Castro petitions this Court for certiorari is not

inequitable to Brito—and certainly does not outweigh the clear harm that denying this stay will cause A.F. and Castro.

Finally, the public interest favors a stay. *See Chafin*, 568 U.S. at 179. While it is true that the Hague Convention “generally requires the ‘prompt return’ of a child,” *Golan*, 596 U.S. at 670, that rule “is not absolute,” *Lozano*, 572 U.S. at 5. The “well settled” defense recognizes that, at a certain point, “return is no longer in the child’s best interests,” *Hernandez*, 820 F.3d at 787. Here, Castro has presented substantial evidence showing that that is the case here—enough for the district court to find that “it is no longer in the best interests of A.F. to return to Venezuela, where she has minimal connections and no memories of living there.” App.72a. There is no public interest here in sending A.F. back to Venezuela while Castro petitions for certiorari from this Court.

CONCLUSION

This Court should grant the application to stay the mandate pending a petition for writ of certiorari. The Court should also issue a temporary stay pending the Court's consideration of this stay application.

Respectfully submitted.

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